

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PORTS AMERICA CHESAPEAKE, LLC AND MARINE
TERMINALS CORPORATION-EAST, *Complainants*

v.

APS EAST COAST, INC., *Respondent*.

DOCKET NO. 23-04

Served: May 30, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING COMPLAINANT’S EMERGENCY MOTION FOR EXTENSION OF TIME

On May 29, 2024, Complainants filed a motion seeking a one-week extension to the briefing schedule. Complainants brief is currently due on May 31, 2024. A request for an extension of time to file a brief must conform to the requirements of 46 C.F.R. § 502.102. 46 C.F.R. § 502.215. Motions for an extension may be granted on a showing of good cause and, if filed less than seven days before the due date, must also show reasonable grounds for the delay in seeking an extension. 46 C.F.R. § 502.102(a).

In support of their motion, Complainants state that Respondent sent them a letter late in the evening on May 24, 2024, announcing changes to Respondent’s tariff schedule that would impact the exclusive-stevedoring program and terminal-access fees that are the subject of this proceeding. The letter stated that the changes would take effect June 1, 2024, but did not provide the proposed text of the changes. After the Memorial Day holiday, on May 28, 2024, Complainants obtained what they believe to be the text of the proposed changes from the tariff publisher. Complainants assert that the changes are material to this proceeding, and that they need additional time to assess the impact of the change before filing their brief.

Complainants’ counsel represent that they contacted Respondent’s counsel seeking consent to this motion, but Respondent’s counsel did not have time to consult with their client prior to the filing of the motion. Considering the current deadline of May 31, 2024, I emailed counsel and informed them that Respondent would have to file any response to the motion by noon on May 30, 2024. Respondent’s counsel acknowledged this email and later filed a response, noting that Respondent did not view the events described in the motion as relevant to this proceeding because the complaint alleges conduct that occurred in 2022 and 2023. But the complaint describes the impact of the access fee as continuing, and Respondent acknowledges that the recent changes were made in response to this proceeding, so it seems they are relevant. Since the tariff changes are relevant to this proceeding, and since Complainant became aware of them after the seven-day deadline to file a motion to extend, I find there is good cause for the requested extension and reasonable grounds for delay in seeking it.

The motion is therefore **GRANTED**. In the interest of time, I let the parties know that I would grant the motion, and counsel for both parties raised concerns about the new schedule's impact on summer travel plans and other personal obligations. I have taken these considerations into account with the schedule below, and so no further extensions will be granted absent extraordinary circumstances. The parties will follow this briefing schedule:

June 7, 2024	Complainant's brief, proposed findings of fact, and appendix.
July 19, 2024	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
August 6, 2024	Complainant's reply brief and responses to proposed findings of fact.

**Alex Michael
Chintella** Digitally signed by
Alex Michael Chintella
Date: 2024.05.30
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Alex M. Chintella
Administrative Law Judge